

Binding death nomination

To request this document in an alternative format such as Braille, call us on 13 43 72 or use our Live chat service at gesb.wa.gov.au.

Nominate who gets your super when you die

Your super is likely to be one of your most significant assets, so it's important to consider what will happen to it after you are gone.

Submitting a binding death nomination is one way to make sure your super goes to the people you want to benefit when you pass away. You can replace or cancel an existing nomination at any time.

What is a binding death nomination?

A binding death nomination is a written direction from a member to their super fund directing the fund how the member wants their superannuation death benefits to be distributed.

Do I need a binding death nomination if I have a will?

If you do not have a valid binding death nomination when you pass away, GESB will pay your super death benefit to your estate to be distributed in accordance with your will.

A binding death nomination allows payment to be made directly to people you have nominated without need for formal Grant of Probate or Letters of Administration. If you wish to nominate your estate to receive part of your benefit, then Grant of Probate or Letters of Administration are still required. If you would like your entire benefit to be paid to your estate, then a binding death nomination is not required.

If you are unsure if a binding death nomination is suitable for you, we recommend that you seek personal financial advice from a qualified and appropriately licensed financial adviser.

Who can I nominate as a beneficiary?

A beneficiary is the person (or people) you would like to receive your super benefit when you pass away. You can nominate more than one beneficiary.

For your nomination to be valid, the people you nominate must be one or more of the following at the time of your death:

- Your spouse (including de facto and same sex couples)
- Your children (including step, adopted or ex-nuptial children)
- Any person(s) financially dependent on you
- Your estate (executor or administrator)
- An interdependent (someone who lives with you and shares a close personal relationship where one or both of you provide for the financial and domestic support and personal care of the other)

If you have multiple GESB accounts, you can nominate the same person(s) as beneficiaries for all your accounts. Alternatively, you can distribute the benefit from different accounts to different beneficiaries, except if you have multiple

Retirement Income Pension accounts where the binding death nomination will apply to all.

Any subsequent Retirement Income Pension accounts opened under the same member number without a reversionary beneficiary will also have the existing binding death nomination applied.

Note for Retirement Income Pension members

You're unable to have both a reversionary beneficiary and a binding death nomination on the same account. If you already have a reversionary beneficiary in place and would prefer to have binding death nomination, you'll need to close your current Retirement Income Pension account and commute your pension to a new account. Commuting your Retirement Income Pension account could have tax implications. Please call us on 13 43 72 for more information.

Types of nominations

A binding death nomination can be either non-lapsing or lapsing. At this time, we can **only accept non-lapsing nominations**.

Non-lapsing

A non-lapsing binding death benefit nomination is a written direction made by you to the fund that doesn't expire. You don't need to renew a non-lapsing nomination.

Lapsing

At this time, we are **not accepting lapsing nominations**. This may change in the future.

A lapsing binding death benefit nomination is a written direction made by you to the fund which is valid for a specified period. Unlike a non-lapsing nomination, you will need to renew a lapsing nomination following the expiry period.

Submitting a binding death nomination

To submit a binding death nomination, complete the attached **'Binding death nomination'** form and post it to us.

Please ensure your beneficiaries named meet the criteria outlined above.

Nominating multiple beneficiaries

If you're nominating more than one beneficiary, you need to make sure the allocated proportion of your benefits equals 100%. Note you can only nominate a percentage to two decimal places.

If you have multiple GESB accounts

If you have more than one GESB account, you can include all your accounts on the same '**Binding death nomination**' form if the person(s) you're nominating as the beneficiary is the same for all accounts.

If you want to distribute the benefit from different accounts to different beneficiaries, you will need to submit a separate '**Binding death nomination**' form for each account.

Submitting the form

For us to accept your binding death nomination form and process your nomination, it needs to:

- Be an original copy provided to us by mail (not e-mail or fax)
- Be physically signed by you, in the presence of two witnesses over the age of 18 who are not named as beneficiaries on the form (we do not accept digital signatures)
- Be signed and dated by those witnesses on the same day as you
- Contain nominations that equal 100% of your super benefits
- Name beneficiaries who are your spouse, child, financial dependent, interdependent, or your estate
- Should be fully completed and not have been altered, i.e. crossed out text, additional text, use of correction fluid

Review your nomination regularly

It's important to review your binding death nomination regularly to make sure it remains valid, especially if your circumstances change. If any nominee is ineligible at the time of your death, your entire nomination is deemed invalid, and your benefit will be paid to your estate.

Changing or cancelling an existing binding death nomination

If you have an existing binding death nomination and want to change or cancel your nomination, you can complete and submit a new '**Binding death nomination**' form.

Once approved, this will override your previous nomination.

Your investment choice will be switched to cash

Once we have received formal notification of death, the existing account balance will be switched into the Cash investment plan, which may take up to five business days to process.

This is done to provide greater certainty as to the benefit amount payable. Please refer to the relevant Product Information Booklet at gesb.wa.gov.au/brochures for further details.

Contact us

If you have any questions or would like help completing the form, please contact us on 13 43 72 between 7.30am and 5.30pm (AWST), Monday to Friday.

Disclaimer: the information contained in this document is of a general nature, and does not constitute legal, taxation or personal financial advice. In providing this information, we have not considered your personal circumstances including your investment objectives, financial situation or needs. We are not licensed to provide financial product advice. Before acting or relying on any of the information in this document you should review your personal circumstances, and assess whether the information is appropriate for you. You should read this document in conjunction with the relevant Product Information Booklet and disclosure documents at gesb.wa.gov.au/brochures. You may also wish to seek advice specific to your personal circumstances from a suitably qualified adviser.

How to contact us

T Member Services Centre 13 43 72
PO Box J 755, Perth WA 6842

F 1800 300 067

W gesb.wa.gov.au

Binding death nomination

Non-lapsing nomination

To request this document in an alternative format such as Braille, call us on 13 43 72 or use our Live chat service at gesb.wa.gov.au.

Complete this form to submit, change or cancel a non-lapsing binding death nomination.

If you wish for your entire benefit to be paid to your estate, then a binding death nomination is not needed. Our standard process is to pay your benefit to your estate. A Grant of Probate or Letters of Administration are required for payments to your estate.

Section 1 Your details

GESB member number

Mr ☐ Mrs ☐ Miss ☐ Ms ☐ Other

Surname (family name)

Given name(s)

Date of birth / /

Postal address

Postcode

Email address

Telephone – home

 ()

Telephone – work

 ()

Telephone – mobile

Section 2 Submitting or cancelling a nomination

Please confirm if you are making a new nomination or cancelling an existing nomination.

Please tick (✓) one box below only.

- ☐ Submitting a new nomination
- ☐ Cancelling my existing nomination
(If you select this option, move on to section 5)

Section 3 Select the account(s) this nomination applies to

Tick the account(s) you would like to include in this binding death nomination.

Note: if you have multiple accounts with us and want to nominate different beneficiaries for each account, you'll need to complete a separate form for each account.

- ☐ All of my GESB accounts
- ☐ Gold State Super account
- ☐ GESB Super account
- ☐ Transition to Retirement or RI Allocated Pension account
- ☐ West State Super account
- ☐ RI Term Allocated Pension account

Note: Retirement Income Pension accounts may have either a reversionary beneficiary OR a binding death nomination. If you already nominated a reversionary beneficiary as part of your Retirement Income Pension or RI Term Allocated Pension account, you cannot make a binding death nomination for that account.

If you would prefer to have a binding death nomination, you'll need to close your current account and commute your pension to a new account (please note this could have tax implications).

Section 4 Beneficiary details

For your nomination to be valid:

- Each beneficiary you list must fit into one of the categories listed below
- The percentage nominated to the beneficiaries must total to 100%
- You can only nominate a percentage to two decimal places. Please make sure your allocated amounts total 100%. For example, if you nominate three beneficiaries and allocate 33.33% to each, your nomination is not valid as this only adds up to 99.99% of your benefit

If you want to nominate more than seven beneficiaries, please print another copy of page 4, add in the details of your additional beneficiaries, and attach the page to this form.

Beneficiaries can include:

- Your spouse (including de facto and same sex couples)
- Your children (including step, adopted or ex-nuptial children)
- Any person(s) financially dependent on you
- Your estate (provide details of the executor or administrator of your estate)
- An interdependent (someone who lives with you and shares a close personal relationship where one or both of you provide for the financial and domestic support and personal care of the other)



Important: If you nominate only one beneficiary, you must still complete the **percentage of benefit** section to show 100%.

Section 4A Beneficiary details – your estate

Complete this section if you wish to nominate your estate. Provide details of your executor or administrator.

Full name

Date of birth

 / /

Telephone

 ()

Residential address

Postcode

Percentage of benefit: . %

Note: total allocated to all beneficiaries must add to 100%.

A Grant of Probate or Letters of Administration are required for payments to your estate.

Section 4B Beneficiary details – other

DETAILS OF BENEFICIARY #1

Full name

Date of birth

 / /

Telephone

 ()

Residential address

Postcode

Beneficiary's relationship to you:

☐

Spouse

☐

Financially dependent

☐

Child

☐

Financially interdependent

Percentage of benefit: . %

Note: total allocated to all beneficiaries must add to 100%.

DETAILS OF BENEFICIARY #2

Full name

Date of birth

 / /

Telephone

 ()

Residential address

Postcode

Beneficiary's relationship to you:

☐

Spouse

☐

Financially dependent

☐

Child

☐

Financially interdependent

Percentage of benefit: . %

Note: total allocated to all beneficiaries must add to 100%.

DETAILS OF BENEFICIARY #3

Full name

Date of birth

 / /

Telephone

 ()

Residential address

Postcode

Beneficiary's relationship to you:

☐

Spouse

☐

Financially dependent

☐

Child

☐

Financially interdependent

Percentage of benefit: . %

Note: total allocated to all beneficiaries must add to 100%.

DETAILS OF BENEFICIARY #4

Full name

Date of birth

 / /

Telephone

 ()

Residential address

Postcode

Beneficiary's relationship to you:

☐

Spouse

☐

Financially dependent

☐

Child

☐

Financially interdependent

Percentage of benefit: . %

Note: total allocated to all beneficiaries must add to 100%.

Section 4B Beneficiary details – other (continued)

DETAILS OF BENEFICIARY #5

Full name

Date of birth

 / /

Telephone

 ()

Residential address

Postcode

Beneficiary's relationship to you:

☐

Spouse

☐

Financially dependent

☐

Child

☐

Financially interdependent

Percentage of benefit: . %

Note: total allocated to all beneficiaries must add to 100%.

DETAILS OF BENEFICIARY #6

Full name

Date of birth

 / /

Telephone

 ()

Residential address

Postcode

Beneficiary's relationship to you:

☐

Spouse

☐

Financially dependent

☐

Child

☐

Financially interdependent

Percentage of benefit: . %

Note: total allocated to all beneficiaries must add to 100%.

DETAILS OF BENEFICIARY #7

Full name

Date of birth

 / /

Telephone

 ()

Residential address

Postcode

Beneficiary's relationship to you:

☐

Spouse

☐

Financially dependent

☐

Child

☐

Financially interdependent

Percentage of benefit: . %

Note: total allocated to all beneficiaries must add to 100%.

Section 5 Member declaration

- I acknowledge that if I provide invalid information, my binding death nomination will not be accepted by GESB
- I understand my nomination will only be valid if the beneficiaries listed on this form are my spouse, child, financial dependant or interdependent, or my estate when I die
- I understand that this is a non-lapsing nomination
- I understand I can change or cancel my nomination at any time by following this process again and providing the updated information
- If this nomination is invalid or has not been received by GESB when I die, the benefit will be paid to my estate in accordance with GESB's governing legislation and regulations
- I understand GESB accepts no responsibility for the correct nomination of beneficiaries
- I understand GESB does not provide financial advice, and I can seek professional financial and taxation advice to discuss my personal circumstances
- I declare that the information supplied on this form is true and correct to the best of my knowledge

Your signature

Date

 / /

Note: your signed date MUST be the same date that the form is signed by the witness.

Section 6 Witness declaration

For your nomination or cancellation to be valid, this form needs to be signed by two witnesses over the age of 18 who are not nominated beneficiaries on this form.

Witnesses must sign and date this form in the presence of the member, on the same date.

If you are planning on submitting your form in person it must be signed by your witnesses before handing the form to us.
We can't witness this form for you.

By signing below, each witness declares that:

- I am over 18
- I am not a beneficiary nominated on this form
- The member signed this binding nomination or cancellation in my presence

Declaration of witness one:

Print name

Date of birth

Telephone

Signature

Date

Note: this MUST be the same date
that the form is signed by the member.

Declaration of witness two:

Print name

Date of birth

Telephone

Signature

Date

Note: this MUST be the same date
that the form is signed by the member.

More information

For more information about submitting your binding death nomination, please contact your Member Services Centre on 13 43 72.

Section 7 Checklist

Checklist

It is important that you complete all relevant sections correctly.

For us to accept your binding death nomination form and process your nomination, it needs to:

- ☐ Be an original or certified copy provided to us by mail. We do not accept emailed or faxed copies.
- ☐ Be physically signed by you, in the presence of two witnesses over the age of 18 who are not named as beneficiaries on the form (we do not accept digital signatures)
- ☐ Be signed and dated by those witnesses on the same day as you
- ☐ Contain nominations that equal 100% of your super benefits
- ☐ Name beneficiaries who are your spouse, child, financial dependent, interdependent, or the executor or administrator of your estate
- ☐ Be fully completed and not have been altered, i.e. crossed out text, additional text, use of correction fluid

Section 8 Post your form to us

Please check that all relevant parts of this form have been completed before you post your form to us at:

GESB

PO Box J 755

Perth WA 6842

Note: we have a privacy statement that explains how we handle private information about individuals responsibly. Our privacy statement is available on our website at gesb.wa.gov.au/privacy or can be obtained by contacting your Member Services Centre on 13 43 72.

How to contact us

T Member Services Centre 13 43 72

F 1800 300 067

W gesb.wa.gov.au

PO Box J 755, Perth WA 6842

Government Employees Superannuation Board ABN 43 418 292 917